Enterprise Software Subscription Agreement Comparison

This comprehensive analysis compares subscription agreement provisions across four major enterprise software vendors to provide a reference framework for creating Alauda's subscription agreement. The comparison reveals distinct approaches to licensing models, risk allocation, and commercial terms that reflect each vendor's market positioning and business model.

Executive Summary

HAProxy employs a hybrid open source/proprietary model with strong vendor protections and reseller-centric payment structures. haproxy **MariaDB** uses server-based pricing with aggressive SLAs and comprehensive liability caps. **Red Hat** pioneered the enterprise open source subscription model with sophisticated unit-based measurements and geographic variations. **SUSE** implements a tiered agreement structure with advanced cloud portability and multi-distribution support capabilities.

Key differentiators include Red Hat's separation of open source rights from subscription benefits, MariaDB's dual liability caps ($500K aggregate plus per-order limits), HAProxy's server-level licensing requirements, haproxy and SUSE's bring-your-own-subscription cloud model.

Detailed Provision Comparison

License Grant Terms and Scope

Vendor	License Type	Scope	Key Restrictions	Unique Features
HAProxy	Limited, non-exclusive, non-transferable haproxy	Internal operations only haproxy	Cannot decompile encrypted portions; all servers must have same subscription level haproxy	Hybrid GPL/proprietary model; clear separation between community and enterprise haproxy haproxy
MariaDB	Limited, nonexclusive, nontransferable	Internal business use only	Cannot use as service bureau/provider for external end users	Dual licensing: GPL for base software, commercial for enterprise features
Red Hat	Expressly granted rights only	Rights limited to specific grants per product	Must comply with open source licenses; no trademark rights implied	**Open source rights remain perpetual**; subscription benefits separate from underlying licenses
SUSE	Subject to registration via SCC	Specific to exact SUSE Product purchased	Cannot mix subscription types on same server; internal use only	Tiered agreement structure (VLA/MLA/EULA precedence)

Subscription Models

Vendor	Free Tier	Paid Structure	Evaluation	Developer Options
HAProxy	Community GPL v2 haproxy	Annual subscriptions, custom pricing SaaSworthy	Free trial with full features HAProxy	No specific developer program
MariaDB	Community Server (GPL)	Enterprise Platform tiers; BSL for MaxScale (\u003c3 servers)	Standard evaluation terms	No specific developer program
Red Hat	**Perpetual open source licenses**	1-3 year terms with auto-renewal	Evaluation subscriptions available	**Free developer subscriptions** (March 2016+)
SUSE	Academic/evaluation only	Commercial with Basic/Standard/Priority support	**60-day evaluation** (may invoice if exceeded)	**1-year personal use developer offerings**

Payment Terms and Pricing Structures

Vendor	Payment Terms	Currency	Late Fees	Pricing Model
HAProxy	Through authorized resellers haproxy	U.S. dollars	Not specified	**Server-based licensing**; custom pricing
MariaDB	**Net 30 days**	USD (MariaDB USA), EUR (MariaDB Ab)	**1.5% monthly** or legal maximum	Server count or vCPU count based
Red Hat	Net 30 (subscriptions), upfront (services)	EUR required (EMEA), flexible (NA)	1.5% monthly or legal maximum	**Sophisticated unit-based** (cores, sockets, nodes)
SUSE	Based on consumption of Units	Various by region	1.5% monthly or legal maximum	Socket/core/instance-based with stacking

Support and Maintenance Provisions

Vendor	Support Levels	Response Times	Key Features
HAProxy	Professional support included haproxy	Not specified in detail	"Real humans" 24/7 support; HAProxy phone and online ticketing Techimply
MariaDB	Basic (24hr), Standard (30min urgent), Premium (15min urgent)	**15-minute urgent response** (Premium)	Quarterly executive reviews; dedicated Premium Support Engineer
Red Hat	Self-support, Standard, Premium	**1 hour Severity 1** (Premium/Standard)	Technical Account Management; beta program access

Vendor	Support Levels	Response Times	Key Features
SUSE	Basic, Standard, Priority	By priority level	All installations must be covered for support eligibility

Intellectual Property Rights

Vendor	Vendor IP Retention	Customer Feedback	Trademark Rights
HAProxy	All IP rights retained haproxy	Customer grants perpetual license for feedback haproxy	Nonexclusive trademark licenses to partners haproxy
MariaDB	**Retains all IP rights**	**Worldwide, irrevocable license** for feedback	Must comply with trademark policies
Red Hat	Reserves all rights not expressly granted	**Perpetual and irrevocable license** for feedback	No trademark rights unless expressly stated
SUSE	Proprietary work of SUSE (subject to open source terms)	Standard feedback appropriation	Usage rights limited to internal use

Warranties and Disclaimers

Vendor	Express Warranties	Disclaimers	Unique Exclusions
HAProxy	Professional support delivery haproxy	**"AS-IS" and "AS AVAILABLE"** basis	Risk allocation reflected in pricing haproxy
MariaDB	Professional service delivery	All implied warranties disclaimed	**Hazardous environment use excluded**
Red Hat	Authority, professional performance, no malicious code	**"AS IS"** except express warranties	Standard disclaimers with limited exceptions
SUSE	Limited express warranties	Standard disclaimers	**"AS IS" for Technical Previews**

Limitation of Liability

Vendor	Primary Cap	Additional Caps	Excluded Damages
HAProxy	**12 months of fees** paid prior to claim	Partner: greater of 12 months or $10,000 haproxy	Indirect, consequential, punitive damages haproxy
MariaDB	12 months of fees under Order Form	**$500,000 aggregate cap** across all Order Forms	Data loss, business interruption specifically excluded
Red Hat	12 months of fees preceding claim redhat	**€45,000 minimum (EMEA only)** redhat	Standard exclusions plus loss of data/profits

Vendor	Primary Cap	Additional Caps	Excluded Damages
SUSE	12 months fees (min $1,000 per offering)	**$5,000 for all other claims**	Death/personal injury, fraud, payments not excluded

Termination Conditions

Vendor	Breach Cure Period	Notice Requirements	Immediate Termination Triggers
HAProxy	**30-day cure period**	60 days for non-renewal	Insolvency, bankruptcy, business cessation haproxy
MariaDB	30-day cure period	60 days agreement, 30 days order form	Non-payment, **IP infringement**, bankruptcy
Red Hat	30-day cure period	30-60 days for non-renewal redhat	Material breach (confidentiality excluded from cure)
SUSE	14-day cure for non-payment	Various by trigger	Unauthorized use, material breach

Geographic and Jurisdictional Variations

Vendor	Governing Law	Currency Requirements	Liability Differences
HAProxy	**New York law** (universal)	U.S. dollars required haproxy	No geographic variations identified
MariaDB	**California law** (2024); Finnish law for non-US/Canada (2020)	USD/EUR by entity	No significant geographic differences
Red Hat	NY law (NA), **English law (EMEA)**	EUR required (EMEA)	**€45,000 minimum cap (EMEA)** redhat
SUSE	NY law (default), **English law (UK/EU)**, Chinese law (China)	Varies by contracting entity	**6 different contracting entities** by region

Renewal and Cancellation

Vendor	Auto-Renewal Period	Notice Period	Price Changes
HAProxy	**1-year with annual renewal** haproxy	60 days to prevent renewal haproxy	Pricing modifications allowed haproxy
MariaDB	1-year automatic renewal	**60 days advance notice**	Renewed at "then-current fees"

Vendor	Auto-Renewal Period	Notice Period	Price Changes
Red Hat	**Same duration as original term** redhat	30-60 days depending on version redhat	Same price and terms on renewal
SUSE	Successive terms	30 days for material changes	Customer may terminate for adverse changes

Service Level Agreements

Vendor	Response Times (Urgent)	Uptime Guarantees	Premium Features
HAProxy	Not specified	Not specified	24/7 "real humans" support HAProxy
MariaDB	**15 minutes (Premium)**	Not specified	**4-hour ongoing urgent replies**
Red Hat	1 hour (Sev 1) redhat	Not specified	**TAM with 2 annual on-site visits**
SUSE	By priority level	Not specified	Product lifecycle support

Usage Restrictions and Compliance

Vendor	Coverage Requirements	Audit Rights	Third-Party Use
HAProxy	All servers same subscription level haproxy	**Annual audit rights** haproxy	Prohibited
MariaDB	All servers/vCPUs must be licensed	**15-day advance audit notice**	Affiliates require separate agreement
Red Hat	All Units must be covered Red Hat	**10-day audit notice** redhat	Limited to contractors/vendors
SUSE	**All installations must be covered**	Confidential audit rights	Internal use only

Updates and Upgrades

Vendor	Update Inclusion	Version Support	Maintenance Requirements
HAProxy	Updates included during subscription haproxy	May discontinue older versions haproxy	Proprietary notices must remain haproxy
MariaDB	Updates included	**Platform-specific limitations**	Bug fixes not guaranteed in future versions
Red Hat	**"If and when available"** redhat	Detailed lifecycle policies	Extended support purchasable
SUSE	**Free if commercially released**	Module updates may be required	Support may require current updates

Unique Vendor-Specific Provisions

HAProxy Distinctive Features

- **Reseller payment model** with direct customer relationships haproxy
- **Performance benchmarking restrictions** haproxy
- **Hosted service integration** (AWS-specific) haproxy
- **Partner program trademark licensing** haproxy

MariaDB Distinctive Features

- **Business Source License (BSL) model** for MaxScale
- **Grace period mechanism** (3-month service continuation)
- **Server-based vs. user-based pricing**
- **Non-solicitation with liquidated damages** (2x compensation)

Red Hat Distinctive Features

- **Separation of open source rights from subscription benefits** Red Hat
- **Cloud Access Program** for subscription portability redhat
- **Stacking rights** for capacity management redhat
- **Open Source Assurance Program** for IP protection Red Hat

SUSE Distinctive Features

- **Bring Your Own Subscription (BYOS)** cloud model
- **Multi-distribution Linux support**
- **Live patching without reboots**
- **Edge computing specialization** with cluster restrictions

Strategic Implications for Alauda

Risk Allocation Models: MariaDB's dual liability caps and Red Hat's geographic variations provide frameworks for balancing vendor protection with customer comfort. SUSE's exclusion of death/injury/fraud from caps represents best practice.

Pricing Innovation: Server-based (HAProxy/MariaDB) vs. unit-based (Red Hat/SUSE) models offer different scaling economics. MariaDB's vCPU alternative and Red Hat's sophisticated unit definitions provide flexibility for cloud-native deployments.

Open Source Integration: Red Hat's model of separating subscription benefits from underlying open source rights provides the clearest framework for hybrid commercial/open source offerings. Red Hat

Geographic Flexibility: Red Hat and SUSE demonstrate sophisticated multi-jurisdictional approaches that could support global expansion while maintaining legal clarity.

Support Differentiation: MariaDB's aggressive 15-minute response times and Red Hat's Technical Account Management model show how support can become a competitive differentiator beyond basic technical assistance.

This analysis provides a comprehensive foundation for structuring Alauda's subscription agreement by highlighting successful approaches across licensing models, commercial terms, and risk allocation strategies used by leading enterprise software vendors.